

CONTINGENCY WAIVER & OFFER ACKNOWLEDGEMENT

(If you do not understand the consequences of the waivers referred to in this form, seek competent legal advice prior to signing.)

Buyer(s): _____

Broker: _____

Agent: _____

Property Address: _____

We, the Buyer(s), have decided to submit an offer on the above referenced property.

In an effort to submit a more attractive offer to the Seller(s), we have made certain decisions, identified below with Buyer(s) initials, with respect to the terms of our offer. Agent has fully informed us of the potential adverse consequences that may result from these decisions. Notwithstanding the cautionary advice from Agent, we accept the risks and hereby release, indemnify, and hold harmless Broker and Agent from any liability, loss, damage, or adverse consequences that may result from our decisions regarding the issues herein.

(Check and Initial all that apply)

☐	☐	☐ Offer price higher than the listed price.	☐	☐	☐ Include price escalation clause in offer.
☐	☐	☐ Waive financing contingency.	☐	☐	☐ Waive well water contingency.
☐	☐	☐ Waive home inspection contingency.	☐	☐	☐ Waive contingency for lead-based paint testing.
☐	☐	☐ Waive Wood Destroying Insect contingency.	☐	☐	☐ Waive radon contingency.
☐	☐	☐ Other: _____			
☐	☐	☐ Other: _____			
☐	☐	☐ Other: _____			

Acknowledged and agreed to by Buyer(s):

Buyer

Date

Buyer

Date

Addendum to Listing Agreement for COVID-19 Concerns

SELLER: _____

BROKER: _____

PROPERTY: _____

The current world-wide Coronavirus COVID-19 pandemic has had unprecedented impacts on real estate transactions. The Broker is asking for your consent to continue showing your Property and for continued access to your Property by those involved in the sale and settlement process.

In consideration of Broker's continued willingness to market the Property under the Listing Agreement, the Seller and Broker agree to amend the Listing Agreement as follows:

DECISION TO CONTINUE SHOWINGS OR NOT.

Seller makes the following selection and directs the listing agent as follows: Please Initial One selection.

☐	☐	☐	☐
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Seller authorizes continued showings of the Property and agrees to allow access to the Property by potential buyers, buyer's agents, inspectors, appraisers, contractors, and others as may be necessary to complete the sale and settlement of the Property.

☐	☐	☐	☐
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Seller elects to have the property TEMPORARILY REMOVED FROM THE MARKET and noted as such in the MLS until _____ (date) at which time it shall be reinstated as ACTIVE unless otherwise agreed in writing. No showings of the property shall occur while listed as "Temporarily Off the Market".

CONFIRMATION OF LISTING. All other terms and conditions of the Listing Agreement remain unchanged and in full force and effect.

ACKNOWLEDGMENT. Seller acknowledges he/she has read, fully understands, and consents to this Addendum to Exclusive Right to Sell Listing Agreement, and acknowledges receipt of a copy. A facsimile, electronic record with electronic signature or photocopy of this signed Addendum shall constitute an original.

SELLER AUTHORITY. I/We hereby certify that I am/we are all the Seller(s) and am/are authorized to agree to the above terms, and that no other third party consent is necessary or has been omitted to execute this Addendum and by signing below hereby agree to the above terms.

Seller		Date	_____
Seller		Date	_____
Seller		Date	_____
Seller		Date	_____

Broker Acceptance		Effective Date	_____
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